

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SERETTA L. GOVANTES and RITA A.
O`BRYANT,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE
OFFICER DANIA FLORESCUATE, TAX
REGISTRY # 967876, SHIELD # 15462
and police officers whose names
are yet unknown, and SUNIL
SHARMA,

INDEX NO.:

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: June 15, 2020

Defendants' address: 1 Police Plaza, New York, NY

Sunil Sharmna-557 Grand Concourse (7-11)
Bronx, NY 10451


ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Bronx County is designated herein as Plaintiffs reside in and the incident occurred in Bronx County

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$500,000.00 with interest from March 7, 2020 and the costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SERETTA L. GOVANTES and RITA A.
O`BRYANT,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE
OFFICER DANIA FLORESCUATE, TAX
REGISTRY # 967876, SHIELD # 15462
and police officers whose names
are yet unknown, and SUNIL
SHARMA,

INDEX NO.:

Defendants.

SERETTA L. GOVANTES and RITA A. O`BRYANT, by their attorney,
Elliot H. Fuld, complain of the defendants and allege, upon
information and belief as follows:

1. SERETTA L. GOVANTES and RITA A. O`BRYANT were, at the times of
the incident described in this Complaint, and still are, African
American residents of the City and State of New York, County of Bronx.

2. POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD
15462 and police officers whose names are yet unknown were and at
all times stated herein and upon information and belief, are police
officers with the New York City Police Department with regards to
the incidents described herein.

3. POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

6. SUNIL SHARMA at all times herein mentioned was and upon information and belief still is the owner and operator of a 7-11 franchise business located at 557 Grand Concourse, Bronx, New York.

AS AND FOR A FIRST CAUSE OF ACTION

7. On or about March 7, 2020, at approximately 1:00 A.M., Plaintiffs

were patrons at a 7-11 store located at 557 Grand Concourse, Bronx, New York.

8. While at that location, the owner SUNIL SHARMA and/or his employees were rude to Plaintiffs and uttered racially offensive comments to Plaintiffs indicating a bias and racial hostility towards Plaintiffs because Plaintiffs were African American.

9. When Plaintiffs objected to those racially offensive comments and objected to being singled because of their ethnicity, SUNIL SHARMA and/or his employees indicated they would be calling the police.

10. Moments later, POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown arrived at the location and informed Plaintiffs that the police were called by the store's owner to make sure that Plaintiffs leave the store.

11. Without either making inquiry of Plaintiffs or store employees, police officers, for no reason other than the color of their skin, forcibly seized and detained Plaintiffs in the store.

6. Upon information and belief, SUNIL SHARMA and/or his employees failed to provide any facts or evidence justifying the seizure and detention of Plaintiffs.

7. At his juncture SERETTA L. GOVANTES began filming the incident with her smartphone.

8. POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown knocked the smartphone out of the hands of SERETTA L. GOVANTES and violently twisted her right arm, causing serious injuries to her right shoulder and wrist.

9. POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown violently shoved both Plaintiffs against a police van, searched both Plaintiffs and handcuffed both Plaintiffs, arresting them for Obstructing Governmental Administration and Disorderly Conduct.

10. At the time of the arrest and detention, POLICE OFFICER DANIA FLORESCUATE, TAX REGISTRY # 967876, SHIELD # 15462 and police officers whose names are yet unknown and those police officers who

were present were aware or should have been aware that Plaintiffs committed no crimes.

11. The detention of the Plaintiffs by those officers was without probable cause and without basis in law or in fact.

12. As of the date of the filing of this Complaint, the police officers have failed or refused to come to court to prosecute Plaintiffs for any criminal act.

13. On or about May 4, 2020, Plaintiffs, by counsel, served upon the Comptroller of the City of New York, a Notice of Claim as required by the General Municipal Law.

14. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused and the Comptroller has not requested that Plaintiffs appear for a hearing pursuant to General Municipal Law §50-h.

15. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of March 7, 2020.

16. As a result of the false arrest of Plaintiffs by defendants, Plaintiffs demands judgment against the Defendants and were damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiffs repeat all the allegations contained in paragraphs "1" through "16" inclusive as though more fully set forth herein.

18. As a result of Defendants' actions, Plaintiffs were falsely imprisoned.

19. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been held as prisoners.

20. That the Defendants, their agents, servants and/or employees failed, refused, or neglected to undertake any measures which could have resulted in Plaintiffs' release.

21. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose employment and earning potential.

22. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

23. Plaintiffs repeat all the allegations contained in paragraphs "1" through "22" inclusive as though more fully set forth herein.

24. After Plaintiffs' false arrest on March 7, 2020 and the malicious prosecution which followed, Plaintiffs are required to several appearances in Bronx Criminal Court.

25. That during the pendency of those charges, the Defendants were well aware that it did not appear that Plaintiffs had committed any crime.

26. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

27. Plaintiffs refused to plead guilty and the police failed or

refused to appear in court to prosecute the criminal case.

28. The Defendants' prosecution of Plaintiffs were conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constituted malice.

29. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiffs repeat all the allegations contained in paragraphs "1" through "29" inclusive as though more fully set forth herein.

31. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

32. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

33. Defendants THE CITY OF NEW YORK and The New York City Police Department have repeatedly, over the past twenty-five (25) years, failed to train police officers to treat all persons of color and all ethnicities equally and without - racially profiling said persons.

34. By and large actions such as those committed by the Defendants herein have been directed at minorities, that being African Americans and/or Hispanic citizens and residents of Bronx County and these shootings are the result of racial profiling and animus by the Defendants.

35. These actions have continuously and repeatedly deprived citizens African Americans and/or Hispanic citizens and residents of Bronx County and other areas of their civil rights and their rights to safety, health, and security.

36. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars and are entitled to legal fees pursuant to 42 U.S.C. 1988 et seq.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$500,000.00; and
 - b. On the Second Cause of Action, the sum of \$500,000.00; and
 - c. On the Third Cause of Action, the sum of \$500,000.00; and
 - d. On the Fourth Cause of Action, the sum of \$500,000.00; and
- For punitive damages in the amount of \$500,000.00 and legal fees for civil rights violations.

Dated: June 15, 2020



Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, affirms and says: I am an attorney in the State of New York and am the attorney for SERETTA L. GOVANTES and RITA A. O'BRYANT herein, and I verify under the penalties of perjury that all the statements contained in the attached Complaint have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiffs and, upon information and belief, are true. I am making this Verification because, at present, Plaintiffs are unable to appear at my office because of COVID-19 restrictions.

Dated: June 15, 2020



ELLIOT H. FULD